

UNITED STATES BANKRUPTCY COURT
SOUTHERN DISTRICT OF FLORIDA
www.flsb.uscourts.gov

CLERK'S INSTRUCTIONS FOR OBTAINING COPIES OF COURT RECORDS

Except for documents under SEAL, documents containing individual debtors' full Social Security numbers, individual debtors' small business tax returns, and any other document restricted pursuant to local rule or court order, documents are available as follows:

I. Clerk's Office

A. **Paper Records:** Copies of paper court documents in pending or recently closed cases filed **prior to** October 17, 2005, or requests for certified copies or exemplifications of documents may be obtained from the clerk's office at a cost of \$0.50 per page (plus certification and/or exemplification fees if applicable). Additionally, the party submitting the request must also provide the Clerk with a self-addressed stamped envelope to return the requested documents.

B. **Electronic Records:** The following court documents can be viewed for free at all clerk's office locations or printed from public access terminals at a cost of \$0.10 per page or may be obtained from the clerk's office at a cost of \$0.50 per page.

- Court electronic documents filed in cases on or after October 17, 2005
- Court dockets/claim registers for cases filed on or after May 1, 1989
- Proofs of claim images for cases filed on or after September 1, 1993

C. Other Court Records:

1. Audio recordings of court proceedings can be obtained for a fee of \$32.
2. Copies of records in electronic form when those records are not stored in the Case Management/Electronic Case Files (CM/ECF) system or available on the Public Access to Court Electronic Records (PACER) system may be obtained for a fee of \$31. However, the establishment of the fee does not create a right of a party or an obligation of the court to provide a copy of a record in electronic form where a copy of the record can be provided in paper form. If the requested record is in paper format at the Federal Records Center (FRC), and the requestor wants to receive the copy electronically, knows what document(s) he/she wants, and the paper material does not exceed 100 pages, this fee does not apply, and the requestor will be directed to the SmartScan service and applicable fees. This fee does not apply to or

in lieu of already established fees charged for obtaining records available on PACER or for providing a reproduction of an audio recording of a court proceeding (for which the established fee is also currently \$31).

3. Written transcripts of court proceedings: To order a transcript complete Local Form "Transcript Request Form" which sets forth required fees.

Certified copies of court records for any document available at the clerk's office will cost \$11.00 for each certified document plus a per page copy cost of \$0.50. The fee for a search conducted by the clerk's office is \$32.00 per name or item. The fee for exemplification of any document is \$23, plus, if applicable, any search and copy fees.

II. Internet Access via PACER

Images of court electronic documents filed in cases on or after October 17, 2005, court dockets for cases filed on or after May 1, 1989, and proofs of claim or claim registers for cases filed on or after September 1, 1993, may be viewed and printed using PACER (Public Access to Court Electronic Records), a nationwide electronic access service of the federal judiciary. A PACER login account may be obtained by registering at: <https://pacer.uscourts.gov/> or by contacting the PACER service center at (800) 676-6856.

PACER charges \$0.10 per page retrieved. The charge for any single document is capped at \$3.00, the equivalent of 30 pages. The cap does not apply to name searches, reports that are not case-specific, and transcripts of federal court proceedings. If a PACER account accrues a total of less than \$30.00 of charges in any given quarter, fees are waived for that quarter.

NOTE: The Judicial Conference of the United States has amended the policy on privacy and public access to electronic case files by restricting public access through PACER to documents in bankruptcy cases that were filed before December 1, 2003 that have been closed for more than one year, with the following conditions:

- Docket sheet and docket information will remain available to the public via PACER.
- Any party that filed a Notice of Appearance in a case prior to October 10, 2011 will continue to have PACER access to ALL documents in that case provided that the party first logs into CM/ECF, then into ECF/PACER.
- ALL documents will remain accessible at the clerk's office public query terminals.
- If you are not a case participant and wish to obtain a copy of a restricted document, you must contact the clerk's office, who can provide you with a copy of the document at a cost of \$.50 per page (a research fee may apply—see Clerk's

Summary of Fees). The clerk's office will not provide copies of restricted documents electronically via email. Also, the clerk's office will not modify any printed document by redacting a social security number or other personal identifier.

III. Federal Records Center

FRC Retrievals

Copies of documents in closed cases which have been sent to the Federal Records Center (FRC) in Ellenwood, Georgia should be ordered directly from National Archives and Records Administration. You must first contact the court for the transfer and box information, then complete Local Form "Request for Copies of Archived Case Files from U.S. Bankruptcy Court, Southern District of Florida (LF-59)." Pre-Selected Documents for Individual Debtor(s) Cases ONLY (Voluntary Petition, Summary of Debts and Property, Schedules D, E/F, and Discharge of Debtor or Order of Dismissal) may be obtained from the FRC at a cost of \$35.00. Copies of all documents (150 page maximum) for **ALL CASE TYPES (Individual, Business and Adversary cases)** may be obtained from the FRC at a cost of \$90.00. Additional fees will be incurred for a case exceeding the 150 page maximum. Copies of Documents from the FRC may be delivered via FAX or U.S. Mail. Either package can also be certified for an additional \$15.00 at the time of ordering.

Court Retrievals

Files may also be retrieved from the FRC back to the court for a fee of \$64.00 by submitting the Local Form "Archives Request Form" (LF-88). Retrievals involving multiple boxes is \$39.00 for each additional box. Copies of any retrieved case document will cost \$0.50 per page and are only available in paper format. Certified copies of those documents will cost \$11.00 for each document plus a per page copy charge of \$0.50. The fee for a search conducted by the clerk's office is \$32.00 per name or item.

SmartScan (PDF via email)

If the document is 100 pages or less, not sealed, restricted or requiring certification then it may be retrieved via SmartScan in Adobe Portable Document Format (PDF) via email. The service fee per document is \$10.00 (Judiciary Administrative Fee) + \$9.90 (FRC Fee) + \$0.65 per PDF page. If your request is available through SmartScan, and would like to receive the document via email, we will contact you prior to processing the retrieval with the exact amount owed. This method requires submission of Local Form "Archives Request Form" (LF-88).

Local forms are available on the court website in the Forms page. Please contact the clerk's office at one of the following numbers if you have questions about obtaining copies of court documents:

- Miami: (305) 714-1800
- Ft. Lauderdale: (954) 769-5700
- West Palm Beach: (561) 514-4100